



REUNIFICATION THERAPIST/COORDINATION REPORT

15 JA 10, 11
Lee County

This reunification report and plan is being respectfully submitted in response to a court order in the pending case in the matters of the minor children, Morgan Allen (DOB: 08-06-2007), and Lukas Allen (DOB: 05-24-2010).

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I. SCOPE OF REFERRAL:

It is understood that the minor children, Morgan Allen (DOB: 8-06-2007), and Lukas (DOB: 05-24-2010) were taken into the custody of the Lee County Department of Social Services on February 4, 2015. The Courts adjudicated that Lukas and Morgan were neglected by their parents, Mr. Benjamin Allen and Mrs. Tiffany Allen, in that they did not receive proper care, supervision, or discipline and they lived in an injurious environment with exposure to marital discord. The children have been residing in foster care. The plan as of June 8, 2015, is reunification of Lukas and Morgan with their mother or their father. It was also determined that the Lee County Department of Social Services (LCDSS) was making reasonable efforts to eliminate the need for the juvenile's placement in care, and efforts on the part of the social worker have been reasonable to achieve the plan of the Court. Given that Mr. Allen and Mrs. Allen will no longer be residing in the same home and the relative complexity of the allegations in this case, the Honorable Joy Jones ordered (Juvenile Disposition order dated June 8, 2015): the parents shall comply and complete the reunification process with a therapist to be determined by the agreement of the parties and that the therapist shall have the authority to make recommendations regarding the placement /custody of the children and begin implementing steps toward reunification. An Order was then issued (dated June 10, 2015) appointing me as Reunification Therapist to provide the services as detailed in the June 8, 2015 disposition order. It was requested that I complete and submit a reunification report to the appropriate parties in advance of the August 4, 2015 hearing on these matters.

II. LIMITATIONS OF THIS REPORT AND PLAN:

This reunification plan and report was devised after a review of prior court documents: DSS and GAL records, audio and video recordings, and past psychological testing, as well as interviews with the parents, interviews with the children, and interviews with collateral contacts who have been working with this family (see Appendix A and B). This report is limited by the accuracy of each reporting individual's ability to be forthcoming regarding past and present events as well as their accuracy of these recollections. This plan is limited by the accuracy of prior reports and evaluations. During times when conflicting information is reported, all information gathered by the investigative process is synthesized and the most consistent and reliable information is used to guide conclusions and recommendations. The impressions and decisions made for this case may be different if there is additional information that was not made available for review. Unlike in formal custody evaluation report, this report does not include all of the data and information gathered during the interviews, but rather, the conclusions and recommendations stemming from the data and information.

III. NEEDS OF THE CHILDREN:

Morgan and Lukas need to feel safe, secure, respected, and loved. They need consistency and routines, discipline, and expectations that are developmentally appropriate. The children need access to and the opportunity to develop a positive relationship with both parents. The children need access to quality and appropriate housing, education, and mental health services. The children should not be exposed to negative information, allegations, or communications about either parent. Neither Morgan nor Lukas should have access to the information of this report.

IV. STRENGTHS AND LIMITATIONS OF THE PARENTS:

A. *JOINT STRENGTHS AND LIMITATIONS OF PARENTS*

Joint Strengths of Parents: Both Mr. Allen and Mrs. Allen love their children and seem invested in their children's futures. Both parents are capable of providing for their children's basic needs, meaning food, clothing, shelter, and schooling. Mr. and Mrs. Allen have both continued to attend their individual counseling sessions and the supervised visitations with Lukas and Morgan. Their respective therapists have noted that they are both loving and engaged parents and that they have both made significant gains in therapy. Mr. and Mrs. Allen have both been cooperative with this reunification process thus far.

Joint Limitations of Parents: Mr. Allen and Mrs. Allen have both, at times, engaged in behaviors that have been neglectful to the children's welfare, including permissive parenting and displays of high domestic discord/conflict in front of the children.

B. *INDIVIDUAL STRENGTHS AND LIMITATIONS OF PARENTS*

Mr. Allen's Strengths and Limitations as a Parent: Mr. Allen seems to recognize his own strengths and limitations as a parent. He acknowledged that his frequent use of conflict avoidance and efforts to placate Mrs. Allen often resulted in him being overly frustrated and not asserting the level of structure that was needed for the children. Mr. Allen believes that he did all that he could to get Mrs. Allen more supports and help as the primary caregiver; however, he now recognizes that he could have done more for the children by getting more help and supports for himself. He discussed "not knowing what he did not know about parenting" which meant that he did seek out or utilize resources for himself. Mr. Allen has been consistently engaged in therapy and has made positive gains. Mr. Allen was able to discuss Morgan and Lukas's unique behavioral, emotional, and academic needs. He has proactively engaged in a number of trainings to improve his parenting and life skills. He provided in depth reflections about newly learned parenting skills that emphasize a balance of structure, limit setting, nurturance, and responsiveness to the children's emotional needs. He has made arrangements with his employers to minimize travel and eliminate deployments. He discussed having family and social networks that can be actively involved in the

children's lives. All reporters and collaterals reports have described him as being cooperative with recommendations and engaged as a parent.

Mrs. Allen's Strengths and Limitations as a Parent: Mrs. Allen has been a stay-at-home mother and a steady, consistent presence for both Morgan and Lukas for most of their lives. She has recently reentered the workforce. She has been actively receiving therapy to address her level of anxiety and sadness, as well as, her overall parenting. Her therapist indicated that she is making positive gains in these areas. During the reunification interviews, Mrs. Allen was able to discuss some parenting strategies that she has learned that might better equip her to parent Morgan and Lukas. She believes she did not provide enough structure in the home because she deferred all authority to Mr. Allen. She stated that she will "let go" of her prior allegations that Mr. Allen sexually abused the children because "others say it did not happen."

There are significant discrepancies in the results of psychological evaluations for Mrs. Allen, with the evaluation conducted by Dr. Aiello appearing to be a more thorough account of her psychological functioning and one that is most consistent with collateral information reviewed. By different reports, Mrs. Allen has continued to exhibit intermittent displays of unpredictable, emotional, irrational behavior towards others and about Mr. Allen. During her interviews, she conveyed limited insight into the reasons why LCDSS assumed custody of her children, did not acknowledge her responsibility/role in the events, and continued to externalize blame towards Mr. Allen. Her answers to how she will move forward emotionally, particularly around her concerns about the abuse, seemed superficial. There is also significant concern that Mrs. Allen denied events that have been documented in records (e.g., presenting to the children's doctor with a container of "bugs") and on tape (e.g., her stating that she has tied up her other son, was going to beat his ass). She seemed to be a poor reporter regarding her one of children's longstanding behavioral problems. Overall, there is clear evidence that Mrs. Allen has been struggling with significant mental health issues that have been recognized and documented in collateral records, which substantially affect her children.

Unfortunately, Mrs. Allen does not seem to consistently recognize her own strengths and limitations as a parent, or her children's noted behavioral difficulties and need for a high level of structure. A lack of insight and/or acknowledgement will significantly limit her ability to seek out and consistently engage in appropriate care for herself and her children.

V. RECOMMENDATIONS AND RATIONALE:

In forensic matters that involve child custody decisions, the best interests of the child are central to the development of recommendations for the family. The goal of the reunification plan is to reestablish permanency for the children as soon as possible and appropriate. Mr. Allen and Mrs. Allen both have strengths and limitations as parents. At present, Mr. Allen has demonstrated that he can provide a safe and stable home environment for Morgan and Lukas. Despite being actively engaged in therapy, there are still a number of concerns regarding Mrs. Allen's ability to currently provide a safe,

nurturing, and stable home for the children. Thus, the reunification plan for Mr. Allen and the children (Appendix C) is separate and independent of the reunification plan for Mrs. Allen and the children (Appendix D).

In general, the recommendation is for immediate reunification between Mr. Allen and the children, with therapeutic supports in place to concurrently process and improve the adjustment. For Mrs. Allen, the recommendation is for a controlled, graduated plan that allows her to continue receiving supports and building skills that might ultimately lead to a more successful reunification. The plan will also allow monitoring in the event that she exhibits significant declines in her functioning or creates conflict within the reunification process. All family members will need to receive therapy throughout the reunification process, which each member having their own, non-shared individual therapist. This is particularly important because Morgan and Lukas are developmentally different and in two very different places in understanding and processing their removal from the family home. Additional therapeutic recommendations are provided in Appendix E.

In order for this process to work, Mr. and Mrs. Allen will have to agree to follow the plan and not deviate from it unexpectedly. Reviews and safeguards will be put in place such that the reunification plan would slow down or terminate if either parent fails to comply. The second critical factor likely to lower the children's stress is for both parents, and especially Mrs. Allen to show her understanding and active support for the plan. The children will be looking to their mother for permission and a reference as to whether the new custodial arrangement with their father will provide them with emotional and physical security. If this occurs, I believe that the children will be able to cope with the process with minimal disruption, anxiety and distress.

As a mandated reporter, the appropriate Department of Social Services/Child Protective Services agency will be contacted if there are ever concerns about the children's exposure to neglect or abuse.

Further clarification is available if needed.

Respectfully submitted,

A handwritten signature in black ink that reads "April Harris-Britt Ph.D." The signature is written in a cursive, flowing style.

April Harris-Britt, Ph.D.
Licensed Psychologist, HSP-P
NC #3091

APPENDIX A: PROCEDURES

Interviews:		
Mr. Benjamin Allen; Father		3.0 hours
Ms. Tiffany Allen; Father		3.0 hours
Lucas Allen; Minor child		1.0 hour
Morgan Allen; Minor child		1.0 hour
Kris Driggers; LCDSS Social Worker		.5 hour
Linda Smith, LCSW; Therapist for Mr. Allen		.25 hour
Vickie Atkins; GAL		.25 hour
Dr. Pamela Parker, Therapist for Mrs. Allen		.25 hour
Foster parent		.25 hour
Review of Records/Documents/Emails		6.5 hours
Unsuccessful contacts		
Sara Jo Allen	Approximately 15 calls	
Report/Note Writing		5.0 hours
Total		21 hours

APPENDIX B: MATERIALS REVIEWED

Records for Ms. Tiffany Allen

Psychological Evaluation dated May 9, 2015
Psychological Evaluation dated April 29, 2015
Therapist Progress Notes dated April 2, 2015 through July 2, 2015
Admission Assessment for Counseling dated March 23, 2015
Laboratory Report for Substance Abuse Testing dated March 25, 2015
Kentucky CPS Assessment dated December 21, 2010
Kentucky CPS Continuous Quality Assessment dated June 3, 2011
Kentucky CPS Assessment dated August 14, 2014
Unsolicited Letter sent by Ms. Tiffany Allen on June 30, 2015
Out of Home Family Service Agreement dated February 25, 2015

Records for Mr. Benjamin Allen

Psychological Evaluation dated May 9, 2015
Therapist Progress Notes dated January 8, 2015 through June 29, 2015
Therapist Intake Patient Questionnaire dated January 8, 2015
Out of Home Family Service Agreement dated February 5, 2015
Computerized Polygraph Examination Report dated May 30, 2014
Geneva Conventions Accompanying Forces ID for Benjamin Allen
DoD Civilian Leave and Earnings Statement dated January 2, 2015
Form 1099-MISC 2013

Records for Brendan Scott Allen

Case Conference Report dated February 9, 2015
Medical Records dated August 23, 2007 through February 3, 2015

Records for Carter Scott Olson

Child Medical Evaluation dated February 9, 2015
Family Assessment dated February 20, 2015
Medical Records dated March 19, 2005 through February 3, 2015
School Records dated May 9, 2014 through March 24, 2015

Records for Morgan Elizabeth Allen

Certificate of Live Birth dated August 6, 2007
Child Medical Evaluation dated February 11, 2015
Medical Records dated May 28, 2008 through January 12, 2015
School Records dated April 28, 2014 through February 6, 2015

Records for Lukas Scott Allen

Medical Records dated November 28, 2010 through February 3, 2015
Certificate of Live Birth dated May 24, 2010
Child Medical Evaluation dated February 11, 2015

Records for Family

Emails sent by Kris Driggers of LCDSS

Unsolicited Email sent by Chad Wunsch confirming appointment on June 10, 2015

Email sent by GAL Vickie Atkins on July 2, 2015

North Carolina Case Decision Summary/Initial Family Services Agreement dated December 1, 2014 and January 30, 2015

Lee County DSS Case Notes dated from December 1, 2014 through April 17, 2015

Lee County DSS Assessment Initiation dated December 1, 2014

Child/Family Evaluation conducted December 30, 2014 to January 29, 2015

Child/Family Evaluation Addendum conducted March 12, 2015 to April 3, 2015

Lee County DSS Report Finding dated January 30, 2015

Authorization/Consent Request for Child/Family Evaluation dated December 12, 2014 through December 16, 2014

North Carolina SDM Family Risk Assessment of Child Abuse/Neglect dated April 9, 2015

Monthly Foster Care Contact Record dated February 6, 2015

North Carolina Safety Assessment dated December 1, 2014

North Carolina Safety Assessment dated December 4, 2014

North Carolina Safety Assessment dated January 23, 2015

North Carolina Safety Assessment dated January 30, 2015

North Carolina Family Assessment of Strength and Needs dated March 2, 2015

Audio video Records

Recordings provided by LCDSS

Recordings provided by Ms. Tiffany Allen

Legal Documents

Plaintiff Complaint dated December 22, 2014

Juvenile Petitions (Abuse/Neglect/Dependency) dated February 4, 2015

Juvenile Summons & Notice of Hearing (Abuse/Neglect/Dependency) February 5, 2015

Civil Summons for Benjamin Allen and Sarah Jo Allen dated January 8, 2015

Civil Summons for Benjamin Allen dated April 16, 2015

Complaint for Unpaid Child Support dated April 16, 2015

Permanency Planning Hearing Court Report dated May 28, 2015

Therapist Appointment Order dated June 10, 2015

Juvenile Adjudication Orders (Abuse/Neglect/Dependency) dated June 8, 2015

Juvenile Disposition Orders (Abuse/Neglect/Dependency) dated June 8, 2015

Certificate of Service dated July 6, 2015

Temporary Custody Order dated July 6, 2015

Memorandum of Judgement/Orders for Juvenile Custody dated July 6, 2015

Temporary Consent Order dated February 4, 2015

Memorandum of Judgement/Order dated February 4, 2015

Motion to Quash Subpoena dated February 5, 2015

Motion to Quash dated February 6, 2015

Domestic Relations Calendar Request dated February 5, 2015

Notice of Hearing dated February 5, 2015

Certificate of Service dated February 5, 2015
Order Quashing Subpoena dated July 6, 2015
Memorandum of Judgement/Order for Ex Parte Temporary Child Custody and Child Support dated December 22, 2014
Order Transferring Case dated March 11, 2015
Pendente Lite Report and Order dated August 17, 2011
Dismissal of case for criminal trespassing dated January 21, 2015
Memorandum of Judgement/Order for Ex Parte Temporary Child Custody and Child Support dated January 7, 2015
Conditions of Release and Release Order dated December 4, 2014
Temporary Restraining Order dated December 4, 2014
Temporary Restraining Order dated December 23, 2014
Memorandum of Judgement/Order dated March 11, 2015
Affidavit Criminal Complaint (not dated)
Answers and Counterclaims dated January 23, 2015
Certificate of Service dated January 28, 2015
Reply to Counterclaim dated February 25, 2015
Jurisdiction Order dated February 4, 2015
Temporary Jurisdiction Order dated February 4, 2015
Jurisdiction Order dated February 12, 2015
Certificate of Service dated February 12, 2015
Order Allowing Examination of Juvenile Records by Expert Witness dated May 19, 2015
Notice of Appearance dated February 5, 2015
Affidavit of Service dated February 19, 2015
Certificate of Service dated February 19, 2015
Respondent Tiffany Allen's Motion for Discovery dated February 26, 2015
Response to Motion for Discovery dated February 27, 2015
Order Quashing Subpoenas and Denying Motion for Discovery dated April 1, 2015
Consent Continuance Order dated March 10, 2015
Order to Appoint Guardian Ad Litem and Attorney Advocate dated February 10, 2015
Order to Appoint Guardian Ad Litem and Attorney Advocate dated March 9, 2015
Order for Nonsecure Custody (Abuse/Neglect/Dependency) dated February 4, 2015
Order on Need for Continued Nonsecure Custody (Abuse/Neglect/Dependency) dated February 10, 2015
Order on Need for Continued Nonsecure Custody (Abuse/Neglect/Dependency) dated March 17, 2015
Pre-Adjudication Orders dated February 10, 2015
Certificates of Service dated February 10, 2015
Affidavit as to Status of a Minor Child dated February 4, 2015
Motion to Examine Juvenile Records in Abuse, Neglect, and Dependency Cases dated February 10, 2015
Order Allowing Examination of Juvenile Records in Abuse, Neglect, and Dependency Cases dated February 10, 2015
Certificate of Service dated February 27, 2015

APPENDIX C: Reunification Plan for Mr. Benjamin Allen and the Children

The Plan for Mr. Allen recognizes the concerns that have been raised regarding his behavior in the past and present, the noted progress that he has made, and the need for contact between him and the children (Morgan and Lukas).

Phase 1: An immediate transfer of physical custody for Morgan and Lukas to their father, Mr. Allen.

Phase 2: Within 1 week of regaining physical custody of the children, Mr. Allen works with his therapist and Dr. Harris-Britt to write letters to Lukas and Morgan, acknowledging the separation for the family, taking responsibility for his past actions and mistakes, communicating what he has learned and will do differently in the future. Areas to be addressed include but are not limited to the domestic conflict/violence, neglect, and inappropriate discipline. Mr. Allen should then read these letters to Lukas and Morgan during a session with Dr. Harris-Britt that will be scheduled within 10 days of him regaining physical custody.

Phase 3: Mr. Allen should have a weekly Skype session with Dr. Harris-Britt to process the children's reentry into the home; his establishment and implementation of family rules, discipline, and expectations; and the children's separation from/reunification with their mother.

Mr. Allen, Morgan, and Lukas should have a monthly face-to-face session with Dr. Harris-Britt to process the children's reentry into the home, Mr. Allen's establishment and implementation of family rules and expectations, and the children's separation from and/reunification with their mother. These sessions will continue until recommended by Dr. Harris-Britt, with a minimum of 3 sessions. Dr. Harris-Britt would make these determinations with input from Mr. Allen, the children, and other relevant collaterals.

APPENDIX D: Reunification Plan for Ms. Tiffany Allen and the Children

The Plan for Mrs. Allen recognizes the concerns that have been raised regarding her behavior in the past and present, the noted progress that she has made, and the need for contact between her and the children (Morgan and Lukas). A gradual increase in time is recommended as trust and positive parenting is built between Morgan, Lukas, and their mother. Phases would progress based upon Dr. Harris-Britt's consultation and review of relevant information from relevant sources.

Phase 1: Mrs. Allen works with her therapist and Dr. Harris-Britt to write letters to Lukas and Morgan, acknowledging the separation for the family, taking responsibility for her past actions and mistakes, and communicating what she has learned and will do differently in the future. Areas to be addressed include but are not limited to the domestic conflict/violence, neglect, and inappropriate discipline. Mrs. Allen should then read these letters to Lukas and Morgan during a session with Dr. Harris-Britt that will be scheduled within 15 days of the children returning to their Father's physical custody. Mr. Allen will transport the children to this appointment.

Mrs. Allen will immediately begin having a weekly 2-hour supervised visitation with Morgan and Lukas. The therapeutic supervisor would provide feedback about the time together. These supervised visits will continue until Phase 2 begins.

Mrs. Allen will immediately begin having supervised, Skype contact with Morgan and Lukas, a minimum of twice a week, for approximately 30 minutes per session, at a time to be established based upon the children and parents' schedules. These sessions will be supervised by Mr. Allen until no longer recommended by Dr. Harris-Britt, and will then continue unsupervised, unless otherwise recommended by Dr. Harris-Britt. The supervised sessions will be recorded and reviewed by Dr. Harris-Britt, until no longer recommended, in order to better understand and assess the nature of Mrs. Allen's conversations with the children.

Mrs. Allen should have a weekly Skype session with Dr. Harris-Britt to process the children's reentry into Mr. Allen's home; her establishment and implementation of family rules, discipline, and expectations leading up to her unsupervised visits; and the children's separation from/reunification with her.

Mrs. Allen, Morgan, and Lukas should have a monthly face-to-face session with Dr. Harris-Britt to process the children's reentry into her home, her establishment and implementation of family rules and expectations leading up to the unsupervised visits, and the children's separation from and/reunification with her. These sessions will continue until recommended by Dr. Harris-Britt, with a minimum of 3 sessions. Dr. Harris-Britt would make these determinations with input from Mrs. Allen, the children, and other relevant collaterals.

Phase 2: Mrs. Allen, Lukas, and Morgan will spend 4 hours together (time TBD) in her home with a therapeutic supervisor. The therapeutic supervisor would provide Dr. Harris-Britt with feedback about the time together. There will be a minimum of 2 such visits before moving to the next phase.

Phase 3: Mrs. Allen and the children will have an unsupervised mid-week, Wednesday dinner visit (afterschool until 7pm) in Mrs. Allen's home or the community. Morgan and Lukas will have an unsupervised weekend overnight with Mrs. Allen in her home, from Saturday at 8:30am until Sunday at 12pm. There will be a minimum of 2 such visits before moving to the next phase.

Phase 4: Mrs. Allen and the children will have an unsupervised mid-week, Wednesday dinner visit (afterschool until 7pm) in Mrs. Allen's home or the community. Morgan and Lukas will spend an unsupervised weekend (from Friday at 5pm until Sunday at 7pm) with Mrs. Allen. There will be a minimum of 2 such visits before moving to the next phase.

Phase 5: Mrs. Allen will have custodial time with Morgan and Lukas in her home, every other weekend (from Friday at 5pm until Sunday at 7pm) and for a mid-week, Wednesday dinner visit (afterschool until 7pm). Mrs. Allen is allowed to participate in the children's extracurricular activities.

Phase 6: Dr. Harris-Britt will conduct a reassessment of Mrs. Allen's and the children's progress approximately 60 days after Phase 5 begins. At this time, a consideration will be made as to the appropriateness of a 3-3-4-4 parenting schedule.

APPENDIX E: THERAPEUTIC RECOMMENDATIONS

1. Mr. Allen will continue in individual therapy with Linda Smith, LCSW, until no longer recommended by Linda Smith, LCSW. The therapist will provide feedback to Dr. Harris-Britt regarding the therapeutic goals and progress.
2. Mrs. Allen will continue in individual therapy with Dr. Pamela Parker, until no longer recommended by Dr. Pamela Parker. The therapist will provide feedback to Dr. Harris-Britt regarding the therapeutic goals and progress. Treatment goals should be included to further assess the impact of her own trauma history on her current functioning, to increase general perspective taking and insight, and to address past irrational behaviors/thoughts. In addition, Mrs. Allen will engage in Dialectical Behavioral therapy (DBT) to increase her distress tolerance, coping skills, emotional regulation, and interpersonal effectiveness.
3. Mr. Allen will engage Morgan and Lukas in individual therapy, until no longer recommended by those therapists. The therapists should have expertise in working with children, preferable children in divorced families and/or children who have been exposed to domestic violence. Morgan and Lukas should have separate therapists given that they have unique experiences, memories, and wishes regarding their custodial arrangements. From my perspective, the following will improve the likelihood of finding therapists for the children and the overall success of the therapeutic relationship:
 - a. The therapists will have contact with Dr. Harris-Britt at the start of this process.
 - b. The therapists will have contact with both parents at the start of this process and then only at the request of the therapist.
 - c. The therapists will be removed from all future court involvement and,
 - d. The therapists will be ensured that the therapeutic relationship is strictly confidential with the exception of providing feedback to Dr. Harris-Britt and other providers working with the family, and/or making a mandated report for child abuse/neglect.